

# LEGAL DOSSIER: CASE-MACHERET-1997-2026

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Legal Framework: Universal Declaration of Human Rights (UDHR), Jus Cogens, Erga Omnes

Verification Protocol: TI-ULA (Cryptographic Hashing & Pointer Isolation)

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## Node: NODE\_LEGAL\_BASIS\_JUS\_COGENS

Type: root\_legal\_trust\_node

### Legal Foundations (Root of Trust)

erga\_omnes\_obligations: Absolute and non-derogable obligations owed by the State to the international community as a whole.

international\_conventions:

- articles:
  - '53'
  - '71'
- effect: Nullity ab initio of any national judicial decision attempting to validate or sanitize torture or property theft through procedural bad faith.
- instrument: Vienna Convention on the Law of Treaties (VCLT)
- year: 1969
- articles:
  - '4'
  - '7'
  - '15'
- effect: Obligation to prosecute, universal jurisdiction, and inadmissibility of statements extracted under torture.
- instrument: UN Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
- year: 1984

universal\_declaration\_of\_human\_rights:

articles:

- application: Protection against arbitrary state infringement and state-sponsored violence
- article: '3'
- principle: Right to life, liberty and security of person
- application: Direct legal status of torture episodes starting from August 18, 1997 (Case No. 1-568/98)
- article: '5'
- principle: Absolute prohibition of torture and cruel, inhuman or degrading treatment
- application: Nullification of arbitrary detention starting August 5, 1997 (Judge Ciachir, name distortion)
- article: '9'
- principle: Protection against arbitrary arrest, detention or exile
- application: Mandatory restitutio in integrum for ZhSK-39, apt. 64 / Miron Costin 13/3
- article: '17'
- principle: Right to property and prohibition of arbitrary deprivation
- year: 1948

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## Node: NODE\_APOSTILLE\_REGISTRY\_MASTER

Type: evidence\_node

### Legal Framework

basis: UDHR Art. 8; Hague Convention of 5 October 1961; UN CAT Art. 12, 13  
vector: apostille\_registry\_verification -> cryptographic\_anchoring -> chain\_of\_custody

### Cryptographic Anchors (Master Files)

- File: apostille\_registry\_working\_14.signed.pdf
  - SHA-256: de54c36210e4df65d61475c48fd5f3e0ffe60d606041bcbf393affb71e510050
  - Role: Master Apostille Registry (97 verified entries including key Case 1-568/98, 1ra-834/09, and Stambol/illegible signature records)
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## Node: NODE\_CSJ\_DECISION\_2009

Type: evidence\_node

### Legal Framework

basis: UDHR Art. 8, 10, 11; UN CAT Art. 2, 7, 15  
vector: csj\_decision\_1ra\_834\_09 (21.07.2009) -> apostille (19.05.2021, No. 5GTUD58SJQ5N6)  
-> non\_rehabilitation -> continuing\_violation

### Cryptographic Anchors (Master Files)

- File: apostila (6).pdf
  - SHA-256: df921c3fabbbdd0cc382b6e70cefab38a55e9e0ffdb2ba29e17b3e172c0b9ac4
  - Role: Supreme Court of Justice Decision No. 1ra-834/09 (July 21, 2009) with Hague Apostille No. 5GTUD58SJQ5N6 (May 19, 2021, Valeriu Frimu / Judge Guzun Corneliu)
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## Node: NODE\_FABRICATION\_AND\_LANGUAGE\_DEPRIVATION\_2007

Type: evidence\_node

### Legal Framework

basis: UDHR Art. 8, 9, 10, 11; UN CAT Art. 2, 7, 15; CPC RM Art. 16  
vector: nighttime\_search (23.07.2007) -> retroactive\_legitimation (24.07.2007, Judge Gheorghe Morozan) -> language\_deprivation -> ongoing\_denial\_of\_defense

### Cryptographic Anchors (Master Files)

- File: ████████████████████ █████ ██████████.pdf
- SHA-256: cad22878e52a79c4a8613665dc2cca169a8f04cca34132edfbbff7a89ebd5e56
- Role: Night search (23.07.2007, 22:40) and retroactive validation (24.07.2007)

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## Node: NODE\_REABILITARE\_MACHERET\_OLEINIK\_NEGRU\_2026

Type: evidence\_node

### Legal Framework

articles:

- 3
- 5
- 9
- 17

basis: UDHR

vector: detention -> non-rehabilitation -> continuing-consequences -> restitution

### Cryptographic Anchors (Master Files)

- File: Biography of the Criminal Judicial Rehabilitation of Alexei (A©tor).■■■■■■■■■■.pdf
  - SHA-256: 4f30ae4d57a838143e91897c75ddb9206bf078716dee529a9a3481ed00db63ce
  - Role: Narrative core, property claims, family acts
  - File: Cererii\_reabilitare\_Pastulaci\_Stambol\_Grigoras.pdf
  - SHA-256: bd1c166eb48689abcd4e1bae58121aa3fed622b8e06842966b5660cd7d37d674
  - Role: Rehabilitation applications
  - File: CITA■■IE\_reabilitare\_Grigoras\_26.04.2024.pdf
  - SHA-256: 3cb1a4d3e553f2ea4180ac6fdbf9ef1f276d2eb870c093a6c7a194504e2b080
  - Role: Citation referencing rehabilitation
  - File: A\_Negru\_25.04.2023.pdf
  - SHA-256: 7fa67dff9a4e79bcdb959a4adc5fb4b68c85c679b9e036be59d81b834e4f9bd0
  - Role: Documents linked to Judge Negru
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## Node: NODE\_SEMNATURA\_INDESCIFRABILA\_TRAP

Type: evidence\_node

### Legal Framework

basis: UDHR Art. 8, 10, 11; UN CAT Art. 2, 7, 12, 13, 14; VCLT Art. 53

vector: language\_deprivation (CPC RM Art. 16) -> institutional\_sabotage (semnatura indescifrabila■■) -> moldsign\_state\_binding -> ti\_ula\_cryptographic\_override

### Cryptographic Anchors (Master Files)

- File: apostille\_registry\_working\_14.signed.pdf
- SHA-256: de54c36210e4df65d61475c48fd5f3e0ffe60d606041bcbf393affb71e510050

- **Role:** Documenting the institutional trap of marking valid physical signatures as 'semnătura indescifrabilă' while binding them with MoldSign state cryptographic certificates.

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## Node: NODE\_TORTURE\_AND\_COVERUP\_1997\_1998

**Type:** evidence\_node

### Legal Framework

articles:

- 3
- 5
- 9

basis: UDHR

vector: arbitrary\_detention (05.08.1997) -> torture\_interrogation (18.08.1997) -> sentence\_1\_568\_98 (13.10.1998) -> cover\_up\_and\_non\_rehabilitation

### Cryptographic Anchors (Master Files)

- **File:** apostila [REDACTED]. 1-568\_98] 1-272\_2003 [REDACTED] 1-649\_2008.pdf
  - **SHA-256:** 157623da476efb97a12378cb03d433c1f7e609e76ba9c6a60b135cbe58f4053c
  - **Role:** Apostilled judgment 1-568/98 confirming torture under interrogation
  - **File:** [REDACTED].signed.pdf
  - **SHA-256:** 7fc3be1b8698954b7fca035a092441e76f902448df9437378e64317471ed943c
  - **Role:** t0-anchor Decizie Ciachir 06.08.1997 (arbitrary detention)
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## Node: SUBNODE\_PROPERTY\_RESTITUTION\_1977\_2026

**Type:** property\_restitution\_subnode

### Legal Framework

basis: UDHR Art. 17 (Right to property & prohibition of arbitrary deprivation)

vector: property\_confiscation -> fraudulent\_registration -> non\_restitution -> restitution\_in\_integrum

### Cryptographic Anchors (Master Files)

- **File:** Infodebit\_Credit\_Report\_Alexei\_Maceret\_26.02.2024.jpg
  - **SHA-256:** 02455b17ecd6956b9adad5f4e5411f7c04b9a3f574b662388d1e43e73da00b5f
  - **Role:** Economic anchor and residential address verification (Miron Costin 13/364)
  - **File:** apostila.2-1642\_08].pdf
  - **SHA-256:** ec45660bed4e6babbbeb2b5b1c62b49ead8c30b579bab76dfbdebacef0dd708ef
  - **Role:** Property claims and case file no. 2-1642/08 (ZhSK-39 / apt. 64)
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## Node: LINK\_NON\_REHABILITATION\_JUS\_COGENS

Type: verification\_link

### Verification Points

- **File:** Cererii\_reabilitare\_Pastulaci\_Stambol\_Grigoras.pdf
  - **Mapping:** UDHR Art. 8, Const. RM Art. 53 (Initiation of effective remedy)
  - **Status:** verified\_demand
  - **File:** CITAIE\_reabilitare\_Grigoras\_26.04.2024.pdf
  - **Mapping:** Procedural trace of the rehabilitation mechanism
  - **Status:** verified\_trace
  - **File:** A\_Negru\_25.04.2023.pdf
  - **Mapping:** VCLT Art. 53 (Acts conflicting with Jus Cogens are void)
  - **Violation:** Denial of justice by Judge Negru. Subversion of Erga Omnes obligations.
  - **Status:** verified\_violation
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## Node: NODE\_ENTITY\_ACCOUNTABILITY\_NETWORK

Type: entity\_mapping\_node

### Legal Framework

basis: [Universal Jurisdiction / Individual Responsibility for Jus Cogens violations](#)

### Entity Accountability Network

- **Gheorghe Morozan** (Investigative Judge (Judecătoria Rîmnicani)): Issued Judicial Order No. 337/07 on July 24, 2007, validating the fabricated search at Miron Costin 13/3, apt. 64 as the initial procedural fabrication step
  - **Alexandru Negru** (Judge): Formal denial of rehabilitation / Obstruction of effective remedy (UDHR Art. 8)
  - **Viorelia Grigora** (Judge): Issuing citations and procedural orders maintaining procedural barriers while processing rehabilitation claims
  - **Tudor Stambol** (Judge): Issued rulings intentionally confusing review (revizuire, CPC Art. 458) with rehabilitation (CP Art. 112), ignoring res judicata of torture judgment No. 1-568/98
  - **Tatiana Postolachi (Pastulaci)** (Judge (Judecătoria Chişinău, sediul Buiucani)): Processing sham rehabilitation applications under CPC RM Arts. 250-251 while enforcing administrative preclusion and blocking full exoneration
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## Node:

### FINANCIAL\_MODEL\_DAMNUM\_EMERGENS\_LUCRUM\_CESSANS\_2026

Type: economic\_restitution\_model

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## Node: NODE\_FINANCIAL\_MODEL\_1997\_2026

Type: damage\_calculation\_node

### Financial & Moral Claim (Provisional)

damnum\_emergens:

property:

asset: ZhSK-39 apt. 64 (Miron Costin 13/3)

metric: market\_value + historical\_inflation

variables:

base\_value: 75000

currency: EUR

status: provisional

lucrum\_cessans:

lost\_income:

metric: base\_monthly\_rate \* duration\_months

source: Firma Comex SRL (20% stake) + professional blockade

subject: Alexei Macheret

variables:

base\_monthly\_rate: 1500

currency: EUR

status: provisional

total\_lost\_base\_income: 523500

moral\_damage:

jus\_cogens\_violation:

metric: international\_tribunal\_standard (UN CAT / UDHR Art. 3, 5, 9)

variables:

currency: EUR

estimated\_claim: 500000

status: provisional

**Total Provisional Claim: 1098500 EUR**

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## Node: LINK\_ACCOUNTABILITY\_TO\_CONSEQUENCES

Type: causation\_link

### Legal Framework

basis: Draft Articles on Responsibility of States for Internationally Wrongful Acts,  
UDHR Art. 8

mechanism: perpetuation\_of\_harm\_through\_denial\_of\_justice

### Causation Vectors

- Entity Group: Judges (Negru, Stambol)

- **Action:** Intentional blockage of the rehabilitation mechanism and dismissal of primary torture evidence (Sentin■■■ 1-568/98)
  - **Effect:** Maintained the victim's criminalized status, directly causing the uninterrupted accumulation of Lucrum Cessans (professional blockade) and Moral Damage.
  - **Entity Group:** State of Moldova
  - **Action:** Failure to provide effective remedy and correct acts of its agents
  - **Effect:** Full State Liability for the total provisional claim of 1,098,500 EUR + ongoing monthly accruals.
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**Node: TI\_ULA\_MASTER\_DAG\_REGISTRY\_2026**

**Type:** N/A

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